

ENTERPRISE TECHNOLOGY SERVICES AGREEMENT

(the “Agreement”)

This Enterprise Technology Services Agreement (“Agreement”) is entered into on this 1st day of September, 2026 (“Effective Date”), by and between:

APEX MANUFACTURING INDIA PVT. LTD.

a company incorporated under the Companies Act, 2013, having its registered office at Plot No. 42, MIDC Industrial Area, Chakan, Pune, Maharashtra – 410501, India (hereinafter referred to as the “Customer”, which expression shall, unless repugnant to the context, include its successors and permitted assigns);

AND

BRIGHTSCALE TECHNOLOGIES PVT. LTD.

a company incorporated under the Companies Act, 2013, having its registered office at 5th Floor, Cyber Towers, Hitech City, Hyderabad, Telangana – 500081, India (hereinafter referred to as the “Vendor”, which expression shall, unless repugnant to the context, include its successors and permitted assigns).

Customer and Vendor are each referred to individually as a “Party” and collectively as the “Parties”.

1. DEFINITIONS AND INTERPRETATION

1.1 “Agreement” means this Enterprise Technology Services Agreement, together with all Appendices, Schedules, Exhibits, and the Data Processing Addendum (“DPA”) attached hereto, each of which is incorporated herein by reference and forms an integral part of this Agreement.

1.2 “Services” means the cloud-based enterprise resource planning, analytics, and technology support services described in Appendix A (Statement of Services).

1.3 “Subscription Term” means the initial period during which the Services are made available to Customer, as specified in Section 3, together with any Renewal Term.

1.4 “Annual Contract Value” or “ACV” means the total annual subscription fee payable by Customer to Vendor for the Services, being INR 24,00,000 (Rupees Twenty-Four Lakh only) for the initial Subscription Term, as further detailed in Appendix B (Commercial Schedule).

1.5 “Customer Data” means all data, files, records, and information submitted, uploaded, or generated by or on behalf of Customer through the Services.

1.6 “Confidential Information” means all non-public, proprietary, or confidential information disclosed by one Party to the other in connection with this Agreement.

1.7 “SLA” means the Service Level Agreement set out in Section 8 and Appendix A.

1.8 “Effective Date” means the date first written above.

2. SCOPE OF SERVICES

2.1 Vendor shall provide, and Customer shall receive, the Services described in Appendix A, which include implementation, hosting, maintenance, and support of the BrightScale enterprise software platform for use across Customer's manufacturing and supply chain operations.

2.2 Vendor shall perform the Services in a professional and workmanlike manner consistent with generally accepted industry standards applicable to enterprise software-as-a-service providers.

2.3 Any additional services requested by Customer that fall outside the scope described in Appendix A shall be subject to a mutually agreed change order, including any associated fees, executed in writing by both Parties.

2.4 Vendor shall assign a dedicated Customer Success Manager and a technical implementation team to oversee onboarding, configuration, and go-live activities in accordance with the implementation timeline set out in Appendix A.

3. TERM

3.1 This Agreement shall commence on the Effective Date and shall continue for an initial term of thirty-six (36) months ("Initial Term"), unless terminated earlier in accordance with Section 10.

3.2 Upon expiry of the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months each ("Renewal Term"), unless either Party provides written notice of non-renewal at least ninety (90) days prior to the expiry of the then-current term.

4. FEES AND PAYMENT TERMS

4.1 In consideration of the Services, Customer shall pay Vendor the Annual Contract Value of INR 24,00,000 (Rupees Twenty-Four Lakh only), payable in accordance with the invoicing schedule set out in Appendix B.

4.2 Vendor shall raise invoices on a quarterly basis in advance. Customer shall settle each undisputed invoice within forty-five (45) days from the date of receipt of a valid invoice ("Net 45"). Any amount not paid when due shall accrue interest at 1.5% per month or the maximum rate permitted by applicable law, whichever is lower.

4.3 Annual subscription fees may increase by no more than 5% upon renewal, subject to Vendor providing Customer with at least sixty (60) days' prior written notice of any such increase along with the basis for the adjustment, which shall take into account prevailing market rates, inflation indices, and the scope of Services being provided.

4.4 All fees stated in this Agreement are exclusive of applicable taxes, including but not limited to Goods and Services Tax (GST), which shall be charged additionally at the rate prevailing at the time of invoicing and borne by Customer.

4.5 Customer shall reimburse Vendor for reasonable, pre-approved out-of-pocket expenses incurred in connection with on-site implementation activities, subject to submission of supporting documentation.

5. CUSTOMER OBLIGATIONS

5.1 Customer shall provide Vendor with timely access to relevant personnel, systems, data, and facilities reasonably required for Vendor to perform the Services.

5.2 Customer shall ensure that its use of the Services complies with applicable law and does not infringe the rights of any third party.

5.3 Customer shall be solely responsible for the accuracy, quality, and legality of Customer Data and the means by which Customer acquired such data.

5.4 Customer shall designate a single point of contact to coordinate with Vendor's implementation and support teams throughout the Subscription Term.

6. VENDOR OBLIGATIONS

6.1 Vendor shall maintain adequate staffing, infrastructure, and technical resources necessary to perform the Services in accordance with this Agreement.

6.2 Vendor shall implement and maintain administrative, technical, and physical safeguards designed to protect the security, confidentiality, and integrity of Customer Data.

6.3 Vendor shall provide Customer with reasonable advance notice of any scheduled maintenance that may affect availability of the Services, except in cases of emergency maintenance.

6.4 Vendor shall comply with all applicable laws, including the Information Technology Act, 2000 and rules framed thereunder, in the performance of the Services.

7. IMPLEMENTATION AND ACCEPTANCE

7.1 Vendor shall complete implementation of the Services in accordance with the milestones and timelines set out in Appendix A.

7.2 Customer shall have fifteen (15) business days from the date of each implementation milestone delivery to review and either accept or reject such deliverable, specifying in reasonable detail the grounds for rejection. Failure to respond within such period shall be deemed acceptance.

7.3 In the event of a valid rejection, Vendor shall remediate the identified deficiencies within a mutually agreed timeframe and resubmit the deliverable for acceptance.

8. SERVICE LEVELS

8.1 Vendor shall use commercially reasonable efforts to make the Services available with an uptime of 99.9%, measured on a monthly basis, excluding Scheduled Maintenance and Force Majeure events, as further detailed in Appendix A.

8.2 In the event Vendor fails to meet the SLA commitment set out in Section 8.1 in any given calendar month, Customer shall be entitled to service credits calculated in accordance with the service credit table in Appendix A, as Customer's sole and exclusive remedy for such SLA failure, save as otherwise expressly provided in this Agreement.

8.3 Vendor shall provide Customer with a monthly uptime and performance report within ten (10) business days following the end of each calendar month.

8.4 Vendor shall maintain a support desk available during Business Hours (9:00 AM to 6:00 PM IST, Monday to Friday) for Severity 3 and Severity 4 issues, and on a 24x7 basis for Severity 1 and Severity 2 issues, with response times as set out in Appendix A.

9. INTELLECTUAL PROPERTY AND DATA OWNERSHIP

9.1 As between the Parties, Customer shall retain all right, title, and interest in and to Customer Data, including all intellectual property rights therein. Vendor is granted a limited, non-exclusive license to process Customer Data solely for the purpose of providing the Services.

9.2 Vendor and its licensors shall retain all right, title, and interest in and to the Services, the underlying software platform, and any documentation, including all intellectual property rights therein. No rights are granted to Customer except as expressly set out in this Agreement.

9.3 Vendor shall not use Customer Data for any purpose other than providing the Services, except with Customer's prior written consent or as required by applicable law.

9.4 Customer shall own all reports, dashboards, and analytical outputs generated specifically for Customer through Customer's use of the Services, excluding any underlying Vendor algorithms, models, or proprietary methodologies embedded therein.

10. TERM AND TERMINATION

10.1 Either Party may terminate this Agreement for cause if the other Party commits a material breach of this Agreement and fails to cure such breach within thirty (30) days of receiving written notice thereof.

10.2 Customer may terminate this Agreement for convenience by providing Vendor with 60 days' written notice, without any obligation to specify cause, subject to payment of all fees accrued up to the effective date of termination and any applicable early termination charges set out in Appendix C.

10.3 Vendor may terminate this Agreement for convenience by providing Customer with not less than one hundred and eighty (180) days' prior written notice, provided that Vendor shall continue to perform the Services in full during such notice period.

10.4 Either Party may terminate this Agreement immediately upon written notice if the other Party becomes insolvent, makes an assignment for the benefit of creditors, or becomes subject to bankruptcy or winding-up proceedings that are not dismissed within sixty (60) days.

10.5 Upon termination or expiry of this Agreement for any reason, Vendor shall provide Customer with reasonable transition assistance for a period of up to ninety (90) days, subject to payment of Vendor's then-current professional services rates, to facilitate an orderly migration of Customer Data to a successor platform.

11. CONFIDENTIALITY

11.1 Each Party agrees to hold the other Party's Confidential Information in strict confidence and not to disclose such information to any third party without the prior written consent of the disclosing Party, except as required by law.

11.2 Each Party shall use the other Party's Confidential Information solely for the purpose of performing its obligations under this Agreement.

11.3 The obligations of confidentiality under this Section 11 shall survive termination or expiry of this Agreement for a period of three (3) years, except with respect to trade secrets, which shall be protected for as long as they remain trade secrets under applicable law.

12. DATA PROTECTION AND SECURITY

12.1 Vendor shall process Customer Data in accordance with the terms of this Agreement, the Data Processing Addendum attached hereto, and applicable data protection laws, including the Digital Personal Data Protection Act, 2023.

12.2 Vendor shall implement reasonable security practices and procedures, including encryption of Customer Data in transit and at rest, access controls, and periodic security audits.

12.3 Vendor shall notify Customer without undue delay, and in any event within seventy-two (72) hours, upon becoming aware of any security incident affecting Customer Data.

12.4 Vendor shall delete customer data within 30 days after termination, and shall, upon Customer's written request, provide a written certification of such deletion, save for data that Vendor is required to retain under applicable law.

12.5 Customer may, at its own cost, conduct or commission an audit of Vendor's data protection practices, not more than once per calendar year, upon reasonable prior written notice.

13. WARRANTIES

13.1 Each Party represents and warrants that it has full corporate power and authority to enter into this Agreement and to perform its obligations hereunder.

13.2 Vendor represents and warrants that the Services will materially conform to the specifications set out in Appendix A and will be free from material defects when used in accordance with the applicable documentation.

13.3 EXCEPT AS EXPRESSLY SET OUT IN THIS AGREEMENT, THE SERVICES ARE PROVIDED ON AN "AS IS" BASIS, AND VENDOR DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW.

14. INDEMNIFICATION

14.1 Vendor shall defend, indemnify, and hold harmless Customer against any third-party claim alleging that the Services infringe such third party's intellectual property rights, and shall pay all damages, costs, and reasonable attorneys' fees finally awarded against Customer, or agreed to in settlement, arising from such claim.

14.2 Customer shall defend, indemnify, and hold harmless Vendor against any third-party claim arising from Customer's misuse of the Services or breach of Section 5 (Customer Obligations).

14.3 The indemnifying Party's obligations under this Section 14 are conditioned upon the indemnified Party providing prompt written notice of the claim, sole control of the defense and settlement thereof, and reasonable cooperation, at the indemnifying Party's expense.

15. LIMITATION OF LIABILITY

15.1 EXCEPT FOR THE EXCLUDED CLAIMS SET OUT IN SECTION 15.3, THE AGGREGATE LIABILITY OF EITHER PARTY ARISING OUT OF OR RELATED TO THIS AGREEMENT, WHETHER IN CONTRACT, TORT, OR OTHERWISE, SHALL NOT EXCEED 100% OF ANNUAL CONTRACT VALUE PAID OR PAYABLE BY CUSTOMER IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

15.2 IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS, REVENUE, OR DATA, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

15.3 The limitations set out in this Section 15 shall not apply to: (a) either Party's indemnification obligations under Section 14; (b) breach of confidentiality obligations under Section 11; (c) a Party's gross negligence or willful misconduct; or (d) Customer's payment obligations under Section 4.

15.4 Notwithstanding Section 15.1, and without prejudice to the exclusions in Section 15.3, Vendor's aggregate liability under this Agreement arising from the provision of support and maintenance services described in Appendix A shall not exceed INR 5,00,000 (Rupees Five Lakh only) in any twelve (12) month period.

16. INSURANCE

16.1 Vendor shall, at its own cost, maintain throughout the Subscription Term: (a) commercial general liability insurance; (b) professional indemnity / errors and omissions insurance with a minimum coverage of INR 1,00,00,000 per occurrence; and (c) cyber liability insurance covering data breaches and security incidents.

16.2 Vendor shall furnish certificates of insurance to Customer upon request.

17. FORCE MAJEURE

17.1 Neither Party shall be liable for any failure or delay in performance under this Agreement to the extent such failure or delay is caused by circumstances beyond its reasonable control, including acts of God, natural disasters, war, terrorism, civil unrest, pandemic, or governmental action, provided that the affected Party promptly notifies the other Party and uses reasonable efforts to mitigate the impact.

17.2 If a Force Majeure event continues for more than sixty (60) consecutive days, either Party may terminate this Agreement upon written notice without further liability, except for obligations accrued prior to such termination.

18. DISPUTE RESOLUTION AND GOVERNING LAW

18.1 This Agreement shall be governed by and construed in accordance with the laws of India, without regard to conflict of laws principles.

18.2 Any dispute arising out of or in connection with this Agreement shall first be referred to the respective senior management of the Parties for resolution through good-faith negotiation within thirty (30) days.

18.3 If the dispute is not resolved through negotiation, it shall be referred to and finally resolved by arbitration under the Arbitration and Conciliation Act, 1996, by a sole arbitrator mutually appointed by the Parties. The seat and venue of arbitration shall be Mumbai, Maharashtra, and the language of arbitration shall be English.

18.4 Subject to Section 18.3, the courts at Mumbai, Maharashtra shall have exclusive jurisdiction over matters not subject to arbitration.

19. GENERAL PROVISIONS

19.1 Assignment: Neither Party may assign this Agreement without the prior written consent of the other Party, except in connection with a merger, acquisition, or sale of substantially all assets, provided the assignee agrees to be bound by this Agreement.

19.2 Notices: All notices under this Agreement shall be in writing and delivered by email with confirmation of receipt, or by registered post, to the addresses set out in the signature block below.

19.3 Entire Agreement: This Agreement, together with its Appendices and the DPA, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior agreements, understandings, and negotiations, whether written or oral.

19.4 Amendment: This Agreement may be amended only by a written instrument signed by authorized representatives of both Parties.

19.5 Severability: If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.

19.6 Independent Contractors: The Parties are independent contractors, and nothing in this Agreement shall be construed as creating a partnership, joint venture, or agency relationship.

19.7 Counterparts: This Agreement may be executed in counterparts, including by electronic signature, each of which shall be deemed an original.

IN WITNESS WHEREOF

The Parties have executed this Agreement as of the Effective Date first written above.

For and on behalf of	APEX MANUFACTURING INDIA PVT. LTD.
Name:	_____
Designation:	_____
Signature:	_____
Date:	_____

For and on behalf of	BRIGHTSCALE TECHNOLOGIES PVT. LTD.
Name:	_____
Designation:	_____
Signature:	_____
Date:	_____

APPENDIX A – STATEMENT OF SERVICES

A.1 Description of Services

Vendor shall provide Customer with access to the BrightScale Enterprise Suite, comprising the following modules: Production Planning, Inventory Management, Quality Control, Supply Chain Analytics, and Vendor Portal, hosted on Vendor's cloud infrastructure and accessible to up to 250 named users across Customer's Chakan and Nashik facilities.

A.2 Implementation Timeline

- Milestone 1 – Requirements Sign-off: within 4 weeks of Effective Date
- Milestone 2 – System Configuration and Data Migration: within 10 weeks of Effective Date
- Milestone 3 – User Acceptance Testing: within 14 weeks of Effective Date
- Milestone 4 – Go-Live: within 16 weeks of Effective Date

A.3 Service Level Commitment

Vendor commits to a monthly platform uptime of 99.9%, calculated as: $(\text{Total Minutes in Month} - \text{Downtime Minutes}) / \text{Total Minutes in Month} \times 100$, excluding Scheduled Maintenance windows communicated at least 5 business days in advance.

Monthly Uptime	Service Credit (% of monthly fee)
99.0% – 99.89%	5%
95.0% – 98.99%	10%
Below 95.0%	25%

A.4 Support Response Times

Severity	Description	Response Time
Severity 1	Production system down	30 minutes, 24x7
Severity 2	Major function impaired	2 hours, 24x7
Severity 3	Minor function impaired	8 business hours
Severity 4	General query / cosmetic issue	2 business days

APPENDIX B – COMMERCIAL SCHEDULE

B.1 Annual Contract Value

The Annual Contract Value for the Initial Term is INR 24,00,000 (Rupees Twenty-Four Lakh only), invoiced quarterly in advance at INR 6,00,000 per quarter, payable Net 45.

B.2 Fee Escalation

Vendor may increase annual subscription fees by up to 15% upon each renewal, to account for platform enhancements, additional module entitlements, and increases in Vendor's underlying infrastructure and support costs. Any such increase shall be reflected in the renewal invoice issued to Customer at least sixty (60) days prior to the start of the applicable Renewal Term.

B.3 Additional User Licenses

Additional named user licenses beyond the 250 included in the Annual Contract Value shall be charged at INR 800 per user per month, invoiced quarterly in arrears.

B.4 Payment Schedule

Quarter	Invoice Date	Amount (INR)	Due Date
Q1	01-Sep-2026	6,00,000	16-Oct-2026
Q2	01-Dec-2026	6,00,000	15-Jan-2027
Q3	01-Mar-2027	6,00,000	15-Apr-2027
Q4	01-Jun-2027	6,00,000	16-Jul-2027

APPENDIX C – TERMINATION AND TRANSITION SCHEDULE

C.1 Notice Requirements

Customer termination requires 120 days' prior written notice, delivered to Vendor's designated notice address and copied to the assigned Customer Success Manager, to allow Vendor to plan resource deallocation and initiate the data export and transition process described below.

C.2 Early Termination Charges

Where Customer terminates for convenience prior to completion of the Initial Term, Customer shall pay an early termination charge equal to 50% of the fees that would otherwise have been payable for the remainder of the Initial Term, in addition to all fees accrued as of the effective date of termination.

C.3 Transition Assistance

Following the effective date of termination, Vendor shall make available a data export in a mutually agreed machine-readable format (CSV or JSON) and shall provide up to forty (40) hours of transition support at no additional charge, with any additional hours billed at Vendor's then-current professional services rate of INR 4,500 per hour.

C.4 Return of Property

Upon termination, each Party shall promptly return or destroy all Confidential Information and property of the other Party in its possession, save for archival copies retained for legal or compliance purposes.

DATA PROCESSING ADDENDUM

D.1 Roles of the Parties

For the purposes of applicable data protection law, Customer is the Data Fiduciary/Data Controller and Vendor is the Data Processor with respect to Customer Data processed under this Agreement.

D.2 Processing Instructions

Vendor shall process Customer Data only on the documented instructions of Customer, including with regard to transfers of Customer Data to a third country, unless required to do so by applicable law.

D.3 Sub-processors

Vendor may engage sub-processors to assist in providing the Services, provided that Vendor maintains a current list of approved sub-processors and imposes data protection obligations on such sub-processors that are no less protective than those set out in this DPA. Vendor shall notify Customer of any intended changes to sub-processors, giving Customer the opportunity to object on reasonable grounds.

D.4 Security Measures

Vendor shall maintain the technical and organizational security measures described in Section 12.2 of the Agreement, including encryption, access logging, and periodic vulnerability assessments.

D.5 Data Retention and Deletion

Vendor may retain backup copies for up to 180 days following termination or expiry of the Agreement, solely for disaster recovery and business continuity purposes, and such backup copies shall be subject to the same security measures described in this DPA. Backup copies shall not be used for any purpose other than restoration in the event of data loss.

D.6 Data Subject Rights

Vendor shall provide reasonable assistance to Customer in responding to requests from data principals/data subjects to exercise their rights under applicable data protection law, including rights of access, correction, and erasure.

D.7 Cross-Border Transfers

Vendor shall not transfer Customer Data outside India except with Customer's prior written consent or as necessary to provide the Services, and any such transfer shall be subject to appropriate safeguards as required under applicable law.

D.8 Audit Rights

Vendor shall make available to Customer information reasonably necessary to demonstrate compliance with this DPA and shall allow for and contribute to audits, including inspections, conducted by Customer or an auditor mandated by Customer, subject to the frequency and notice provisions in Section 12.5 of the Agreement.